

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE CREATING SECTION 2.08.060, CITY EMPLOYEES AND IMMEDIATE FAMILY MEMBERS; CONFLICT OF INTEREST POLICY, OF CHAPTER 2.08, CITY OFFICERS AND EMPLOYEES GENERALLY, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, REQUIRING THE PROMULGATION OF A CONFLICT OF INTEREST POLICY FOR EMPLOYEES OF THE CITY OF CHEYENNE AS SPECIFIED AND MAKING A CONFORMING AMENDMENT TO SECTION 2.52.010, REGULATIONS AND BENEFITS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 2.08.060, City Employees and Immediate Family Members; Conflict of Interest Policy, of Chapter 2.08, City Officers and Employees Generally, of Title 2, Administration and Personnel, of the City of Cheyenne, Wyoming, is hereby created as set out in this ordinance.

2.08.060 – City employees and immediate family members; conflict of interest policy.

- A. In accordance with W.S. 15-1-127(c), each employee of the city and any member of his or her immediate family shall be governed by the conflict of interest policy specified under this section. The human resources department for the city of Cheyenne shall consult with the city attorney and other appropriate parties as designated by the director of the department and adopt and promulgate the policy. The purpose of the conflict of interest policy required under this section shall be to recognize that every city employee should seek to prevent conflicts between private interests and public duties, and to foster integrity in public service and promote trust and confidence by the general public in that service. The policy required under this section shall include provisions governing:
1. Financial relationships between an employee of the city or any member of his or her immediate family and any outside party that could provide the outside party a financial benefit that is only available due to the relationship;
 2. Circumstances whereby employees with power or influence over city business or decision making could unduly favor relatives, friends or associates with employment opportunities with the city of Cheyenne or more favorable supervisory conditions if the relative, friend or associate is currently employed by the city;
 3. The acceptance of gifts by city employees, including establishing a maximum monetary gift value threshold not to exceed fifty dollars (\$50.00);

4. The ability of a city employee to obtain secondary employment outside his or her employment with the city of Cheyenne, and if permitted, provisions governing reporting requirements for employees who have obtained secondary employment outside of the city of Cheyenne;
 5. The administration of a reporting process whereby employees may submit concerns or complaints regarding potential conflicts of interest of an employee of the city or any member of his or her immediate family. The reporting process required under this paragraph shall implement mechanisms to combat retaliation against any employee submitting a conflict of interest concern or complaint;
 6. Any necessary and appropriate exemptions whereby an employee or any member of his or her immediate family may not be subject to the requirements of the conflict of interest policy required under this section; and
 7. Other circumstances as specified by the director of the human resources department in consultation with the city attorney and other appropriate parties as designated by the director.
- B. The director of the human resources department for the city of Cheyenne shall make the conflict of interest policy required under this section available to all employees of the city upon request and publish the policy on the city's website.

Section 2. That Section 2.52.010, Regulations and Benefits, of Chapter 2.52, Personnel System, of Title 2, Administration and Personnel, of the City of Cheyenne, Wyoming, is hereby amended as set out in this section.

2.52.010 - Regulations and benefits.

Unless otherwise provided in accordance with Section 2.08.060 of the city code or by law or contract, officers and employees of the city are governed by the city personnel (employee) rules and regulations on file in the offices of the human resources department and the city clerk.

- A. Changes to the city personnel (employee) rules and regulations shall be in accordance with the Wyoming Administrative Procedure Act, Wyo. Stat. Sections 16-3-101, et seq.
- B. Any employee appeal from administrative decisions regarding city personnel (employee) rules and regulations must be filed with and pursuant to established procedures of Chapter 2.92, Administrative Hearing Procedure. This procedure does not apply to grievance procedures prior to an appeal.

Section 3. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 4. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
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